

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
<http://www.courts.state.nh.us>

Court Name: _____
Case Name: _____
Case Number: 473-2016-CR-00218 Charge ID: _____
(if known)

**PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR
CONVICTION FOR PERSONAL POSSESSION OF MARIJUANA (3/4 oz. or less)
OFFENSE OCCURRING PRIOR TO SEPTEMBER 16, 2017**

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name: Jordan Avery Reyes		Date of Birth: 1991-04-17	
Address: 412 Elm Street, Apartment 3			
City/Town Concord	State NH	Zip Code 03301	Telephone Number: 603-555-0142
E-mail Address: (optional) jordan.reyes@example.org			

CHARGE INFORMATION		
RSA/Statute:	Charge: Possession of $\frac{3}{4}$ ounce or less of marijuana	
☐ Arrest no conviction		
Offense Date:	Date of Conviction:	Charge Degree at Conviction:
Description of Sentence and Date Sentence Completed: _____ _____ _____ _____		

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PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR CONVICTION

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge and the amount of marijuana alleged to be or in my possession at the time of this charge was $\frac{3}{4}$ ounce or less.

Date

Applicant's Signature

Name of Counsel

Counsel's Signature

Address

Address

COURT COMPLETES:

Date sent to Prosecutor: _____ Sent by (initials): _____

Name of Prosecutor: _____

NOTICE TO PETITIONER

The Prosecutor may object to this petition within 10 days of receiving a copy and may request a hearing. If an objection is received from the prosecutor within 10 days the court will schedule a hearing. At the hearing the prosecutor will be required to establish beyond a reasonable doubt that the petitioner knowingly or purposely obtained, purchased, transported, or possessed, actually or constructively, or had under his or her control, marijuana in an amount exceeding $\frac{3}{4}$ of an ounce.

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ That the of arrest and or the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor
☐ Defense Attorney
☐ DMV
☐ _____ Police Department
☐ Attorney General
☐ Sentence Review

☐ Defendant
☐ Dept. of Safety – Criminal Records
☐ Dept. of Corrections
☐ Other _____
☐ _____ District Division #

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MOTION FOR WAIVER OF FILING FEE

I, Jordan Avery Reyes, hereby request that the Court waive the filing fee in this case as I do not have the financial ability to pay these fees at this time.

I have completed a Statement of Assets and Liabilities which is being filed with this motion.

In support of this motion, it is stated as follows:

Wherefore, it is respectfully requested that this Court waive the filing fee in this case.

Name of Filer

Signature of Filer

Date

Law Firm, if applicable

Bar ID # of attorney

Telephone

Address

E-mail

City

State

Zip code

Case Name: _____

Case Number: 473-2016-CR-00218 _____

MOTION FOR WAIVER OF FILING FEES

FOR COURT USE ONLY

☐ Motion Granted.

☐ Motion Denied

☐ Motion granted, in part. Filing fee reduced, party to pay \$ _____

Date

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**STATEMENT OF ASSETS AND LIABILITIES
FOR INDIVIDUALS AND SOLE PROPRIETORS**

1. Name: Jordan Avery Reyes DOB: 1991-04-17
2. Residence Address: 412 Elm Street, Apartment 3, Concord, NH 03301
3. Mailing Address (if different): _____
4. Marital Status: ☐ Single ☐ Married ☐ Separated ☐ Widowed
5. List the names, ages, relationships of dependents you support:

6. If you are presently employed, state where and for how long: _____ ☐ Full-Time ☐ Part-Time
7. If unemployed, state last date of employment: _____
8. When do you anticipate new employment? _____
9. If your spouse is presently employed, state where and for how long? _____ ☐ Full-Time ☐ Part-Time
10. If spouse unemployed, state last date of employment: _____
11. List other employed household members and their weekly income: _____

12. Please state weekly take-home amount	Yours	Spouse's
Salary/Wages	\$ _____	\$ _____
Child Support	\$ _____	\$ _____
Alimony	\$ _____	\$ _____
Trust Benefits	\$ _____	\$ _____
Investment Income	\$ _____	\$ _____
Other	\$ _____	\$ _____
*Social Security	\$ _____	\$ _____
*Welfare Benefits	\$ _____	\$ _____
*Veteran's Benefits	\$ _____	\$ _____
*Pension	\$ _____	\$ _____
**Unemployment Compensation	\$ _____	\$ _____
**Worker's Compensation	\$ _____	\$ _____
Total	\$ _____	\$ _____

13. What money is presently available to you?
- | | |
|--------------------------------|-----------------|
| Cash on hand | \$ _____ |
| Checking account | \$ _____ |
| Savings account | \$ _____ |
| Stocks/Bonds/IRA/Pension | \$ _____ |
| Total | \$ _____ |

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STATEMENT OF ASSETS AND LIABILITIES FOR INDIVIDUALS AND SOLE PROPRIETORS

14. Please state your **monthly** household expenses:

Rent/Mortgage	\$ _____	Cell Phone	\$ _____
Property Taxes	\$ _____	Clothing	\$ _____
Heat	\$ _____	Transportation	\$ _____
Food	\$ _____	(including gas, maintenance, insurance, repairs)	
Utilities	\$ _____	Other (specify)	
Medical/Dental	\$ _____	_____	\$ _____
Insurance	\$ _____	_____	\$ _____
Total	\$ _____		

15. List any real estate you own, its market value and the amount you owe:

16. List any vehicles you own (car, truck, boat, motorcycle, snowmobile, RV), their market value and the amount you owe:

17. List income tax paid last year: \$ _____

18. List income tax refund received last year: \$ _____

19. Other than monthly household expenses, list any bills you owe, amount owed, to whom, and monthly payment:

20. List which of your bills are court-ordered payments (i.e. alimony, judgment in a law suit, etc.):

21. Other than those previously mentioned, list anyone to whom you owe money, amount and when it is due:

22. If anyone owes you money, state name, address, amount due, and when due:

23. List any property you have transferred within the last three years, to whom and for what price:

24. List any other assets or expenses not previously mentioned:

* Exempt income – The Court may not consider this income. If this represents the sole source of income, the court may not issue a payment order.

** Potentially/partially exempt income – The Court may be unable to consider this income. Based upon the facts of the case, the Court may or may not issue a payment order.

